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Case Number: 24STCV24603 Hearing Date: August 3, 2026 Dept: 11

Preliminary Approval of Class Action

Settlement

Department SSC-11

Adrian Zamorano v. EcoLife Technologies, Inc.

Case

Number: 24STCV24603

Hearing Date: August

3, 2026

TENTATIVE RULING

GRANT preliminary approval.

BACKGROUND

This is a wage and hour class action. Plaintiff

Adrian Zamorano sues Defendant EcoLife Technologies, Inc. and seeks to represent a class of Defendant's current and former non-exempt employees.

On September 2, 2024, Plaintiff submitted to the Labor and Workforce Development Agency, and sent via certified mail to Defendant, a Notice of California Labor Code Violations and Private Attorneys General Act ("PAGA") Penalties pursuant to Labor Code section 2699.3(a).

On September 23, 2024, Plaintiff filed a Class Action Complaint against Defendant, which alleged causes of action for: (1) Failure to Pay Minimum Wages [Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197]; (2) Failure to Pay Overtime Compensation [Cal. Lab. Code §§ 1194 and 1198]; (3) Failure to Provide Meal Periods [Cal. Lab. Code §§ 226.7 and 512]; (4) Failure to Authorize and Permit Rest Breaks [Cal. Lab. Code § 226.7]; (5) Failure to Indemnify Necessary Business Expenses [Cal. Lab. Code § 2802]; (6) Failure to Timely Pay Final Wages at Termination [Cal. Lab. Code §§ 201-203]; (7) Failure to Provide Accurate Itemized Wage Statements [Cal. Lab. Code § 226]; (8) Unfair Business Practices [Cal. Bus. & Prof. Code §§ 17200, et seq.].

On November 7, 2024, Plaintiff filed a First Amended Class and Representative Action Complaint (“Operative Complaint”) against Defendant, which alleged an additional cause of action for civil penalties under PAGA.

On March 26, 2025, the Parties attended private mediation with the Honorable Carl West (Ret.), and reached a settlement in principle. Terms were finalized in the long-form Joint Stipulation of Class and Representative Action Settlement Agreement (“Settlement Agreement”) with the Court, attached as Exhibit 2 to the Declaration of Kane Moon (“Moon Decl.”).

Now before the Court is the Motion for Preliminary Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

“Class” means all current and former non-exempt, hourly paid employees who worked for Defendant in California at any time from September 23, 2020, through March 26, 2025. (¶1.4)

“Class Period” means the period from September 23, 2020, through March 26, 2025. (¶1.12)

“Aggrieved

Employees” means all current and former non-exempt, hourly paid employees who worked for Defendant in California at any time from September 2, 2023, through March 26, 2025. (¶1.3)

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“PAGA

Period” means the period from September 2, 2023, through March 26, 2025. (¶1.31)

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“Participating

Class Member” means a Class Member who does not submit a valid and timely Request for Exclusion from the Settlement. (¶1.35)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

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The

Gross Settlement Amount (“GSA”) is \$200,000, non-reversionary. (¶3.0)

o Escalator Clause: Based on their records, Defendant estimates that Class Members employed by EcoLife Technologies worked approximately 2,167 Workweeks during the period from September 23, 2020, to March 26, 2025. In the event the number of Workweeks from September 23, 2020, to March 26, 2025 exceeds 2,167 by more than 10% (i.e., exceeds 2,384), Defendant shall pay the pro rata percentage increase in excess of 10% to the Gross Settlement Amount to include the additional workweeks, e.g., an 11% increase in workweeks would result in a 1% increase in the Gross Settlement Amount. (¶7.0)

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The

Net Settlement Amount (“Net”) (\$89,833.33) is the GSA minus the following:

o Up to \$66,666.67 (33 1/3%) for attorney fees (¶3.1.2)

o Up to \$20,000 for litigation costs (Ibid.);

o Up to \$7,500 for a Service Payment to the Named Plaintiff (§3.1.1);

o Up to \$6,000 for settlement administration costs (§3.1.3);

o Payment of \$10,000 PAGA penalty (65% or \$6,500 to the LWDA). (§3.1.4)

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Defendant

will separately pay all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (§3.0)

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There

is no claim form requirement. (§3.0)

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Participating

Class Member Payments: Each

Participating Class Member will receive an Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks.

Non-Participating Class Members will not receive an Individual Class Payment.

The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (§3.1.3.1)

o Tax Allocation: 20% as wages; 80% as interest and penalties. (§3.1.3.2)

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PAGA

Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 35% share of PAGA Penalties by the total number of PAGA Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's

PAGA Pay Periods. (¶3.1.4)

o Tax Allocation: One hundred percent (100%) of each
Individual PAGA Payment will be allocated as penalties. (¶3.1.4)

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“Response

Deadline” means sixty (60) calendar days from the date the Administrator mails the Class Notice to the Class and shall be the last date on which Class Members may: (a) mail a Request for Exclusion from the Settlement; or (b) mail an Objection to the Settlement. Class Members to whom Class Notices are resent after having been returned undeliverable to the Administrator shall have an additional fourteen (14) calendar days beyond the Response Deadline to timely mail a Request for Exclusion or Objection. (¶1.41) The same deadline applies to workweek challenges. (¶6.12.2)

o

If

the number of valid and timely Requests for Exclusion exceeds ten percent (10%) of the total of all Class Members, Defendant may, but is not obligated to, elect to withdraw from the Settlement within thirty (30) calendar days after expiration of the Response Deadline. (¶8.0)

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Funding

of Settlement: The Gross Settlement Amount and any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments shall be fully funded by transmission of such funds to the Administrator within thirty (30) calendar days of the Effective Date. (¶4.0)

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Disbursement

of GSA: No later than fourteen (14) calendar days after Defendant funds the entire Gross Settlement Amount, the Administrator shall mail checks for the Individual Class Payments, Individual PAGA Payments, LWDA PAGA Payment, Class Counsel Fees Payment, Class Counsel Expenses Payment, Class Representative Service Payment, and Administration Expenses Payment. Disbursement of the Class Counsel Fees Payment, Class Counsel Expenses Payment, and Class Representative Service Payment shall not precede disbursement of the Individual Class Payments and Individual PAGA Payments. (¶4.1)

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Uncashed Settlement Checks: Each check will be voided 180 days after the date of mailing ("void date"). (¶4.1.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, or for any Class Member whose envelope is returned and no forwarding address can be located for the Class Member after reasonable efforts have been made, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member, thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure ("CCP") section 384(b). (¶4.1.3)

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The settlement administrator will be APEX Class Action, LLC. (¶1.1)

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Counsel submitted the proposed settlement agreement to the LWDA on July 25, 2026. (Exhibit 3 to Moon Decl.)

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The named Plaintiff and class members will release certain claims against Defendant. (See further discussion below).

ANALYSIS OF SETTLEMENT AGREEMENT

· Does a presumption of fairness exist?

1.

Was the settlement reached through arm's-length bargaining? On March 26, 2025, the Parties attended private mediation with the Honorable Carl West (Ret.), and reached a settlement in principle. (Moon Decl., ¶13.)

2.

Were investigation and discovery sufficient to allow counsel and the court to act

intelligently? Counsel

represents that in preparation for mediation, the Parties agreed to an informal exchange of data and documents. The exchange of data included, but was not limited to, the total number of putative Class Members and Aggrieved Employees, and the total number of Workweeks and Pay Periods worked by all putative Class Members and Aggrieved Employees during the Class and PAGA Periods. The exchange of documents included a random, twenty-five percent sample of the time and corresponding payroll records of all Class Members from September 23, 2020, through November 8, 2024, and the employee handbook in effect during the Class Period. (Id. at ¶11.) Plaintiff's Counsel retained a statistics expert to analyze the records and prepare a damage analysis prior to the mediation. (Id. at ¶12.)

3.

Is counsel

experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including wage and hour class action cases. (Id. at ¶51.)

4.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.")

CONCLUSION: The settlement is entitled to a presumption of fairness.

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Is the settlement fair, adequate, and reasonable?

1.

Strength

of Plaintiff's case. "The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel provided the following
exposure analysis:

Claim

Maximum
Exposure

Realistic
Exposure

Unpaid Wages (Overtime)

\$150,508.00

\$135,457.20

Unpaid Wages (Off-the-Clock)

\$20,669.00

\$2,066.90

Meal Periods

\$96,881.00

\$87,192.90

Rest Periods

\$42,994.00

\$4,299.40

Unreimbursed Expenses

\$9,560.00

\$956.00

Waiting Time Penalties

\$165,425.00

\$25,882.50

Inaccurate Wage Statements

\$45,700.00

PAGA Penalties

\$47,700.00

Total

\$579,437.00

\$255,854.90

(Moon

Decl., ¶¶39-47.)

2. Risk, expense, complexity
and likely duration of further litigation.

Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of
maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently

discovers that the propriety of a class action is not appropriate.”.)

4. Amount offered in settlement. Counsel negotiated a settlement of \$200,000 that is approximately 34.5%-78.2% of Defendant's potential exposure, which is in the ballpark of reasonableness.

The settlement amount, after reduction by the requested deductions, leaves \$89,833.33 to be divided among approximately 53 class members. Thus, the resulting payments will average \$1,694.96.

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object and or opt-out. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

Scope of the release

Releases of Claims: Effective on the date Defendant fully funds the entire Gross Settlement Amount and any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments, Plaintiff, Participating Class Members, and Aggrieved Employees will release claims against all Released Parties as follows: (§15)

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Release

by Participating Class Members: All Participating Class Members fully release

and discharge the Released Parties of any and all claims alleged in the operative Complaint and/or any and all claims that could have been alleged in the operative Complaint, including, but not limited to (i) all claims for violation of California Labor Code sections 201, 202, 203, 204, 218.5, 218.6, 226, 226.7, 510, 512, 1174, 1174.5, 1194, 1194.2, 1197, 1198, 2802, and 2699(f)(2), and the California Industrial Commission Wage Orders, Cal. Code Regs., Title 8, section 11040, et seq., and California Business and Professions Code sections 17200, et seq., and (ii) any and all claims for or related to alleged unpaid wages, minimum wages, regular rate of pay, hours worked, overtime or double time wages, regular rate of pay, bonus and incentive pay, sick pay, timely payment of wages at separation, wage statements, meal periods and meal period premiums, rest breaks and rest break premiums, unfair competition, unfair business practices, unlawful business practices, and statutory penalties at any time during the Class Period (collectively, "Released Class Claims"). (§5.1)

o The Participating Class Members' Release

excludes the release of claims not permitted by law. (§5.1.1)

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Release

by Aggrieved Employees: All Aggrieved Employees fully release and discharge the Released Parties of any and all PAGA claims alleged in the operative Complaint or PAGA Notice and/or any and all PAGA claims based on the facts stated in the operative Complaint or PAGA Notice, including, but not limited to, (i) all PAGA claims seeking civil penalties premised upon California Labor Code sections 201, 202, 203, 204, 218.5, 218.6, 226, 226.7, 510, 512, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 1198, 2802, and 2699(f)(2), and the California Industrial Commission Wage Orders, and (ii) any and all other claims for civil penalties recoverable under the Private Attorneys General Act, Labor Code sections 2698, et seq., including, but not limited to those based on the facts or claims alleged in the operative Complaint or PAGA Notice at any time during the PAGA Period (collectively, "Released PAGA Claims"). The Released PAGA Claims do not release any Aggrieved Employees' claims for wages or statutory penalties, and the Aggrieved Employees may not opt out of the Released PAGA Claims. (§5.2)

o "PAGA Notice" means Plaintiff Adrian

Zamorano's September 2, 2024 letter to the LWDA providing written notice pursuant to Labor Code section 2699.3(a). (§1.33)

o The Released PAGA Claims do not release any Aggrieved Employees' claims for wages or statutory penalties, and the Aggrieved Employees may not opt out of the Released PAGA Claims. (§5.2.1)

"Released Parties" means Defendant, together with its affiliates, shareholders, parents, officers, directors, employees, owners, and agents. (§1.40)

The named Plaintiff will also provide a general release and CC § 1542 waiver. (§5.0-5.0.2)

May conditional class certification be granted?

1.
Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (*Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.) Finally, the Court is under no "ironclad requirement" to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.
Analysis

a.
Numerosity. There are approximately 53 class members. (Moon Decl., §39.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable through Defendant’s records. (Moon Decl., ¶39.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff contends that the questions of law and fact center around (1) whether Defendant had legally compliant policies and practices to: pay employees all wages owed; provide employees with code-compliant meal periods; authorize and permit its employees to take code-compliant rest breaks; and ensure reimbursement of all necessary business expenses incurred; (2) whether Defendant timely paid final wages to employees; and (3) whether Defendant had legally compliant wage statements. The operative Complaint establishes that all Class Members would need to answer these same questions of law and fact to prevail on their injuries; all Class Members have suffered from and seek redress for the same injuries; and all Class Members’ legal remedies would be identical in the event they prevailed. (Memo ISO Prelim at 20:6-16.)

As to typicality, Plaintiff was a former non-exempt employee of Defendant; Plaintiff worked for Defendant in California; Plaintiff typically worked five days and forty hours per workweek; and Plaintiff was subjected to the employment policies and practices of Defendant, which are the basis of his individual and class claims and legal theories in support thereof. The Class Members are also all non-exempt employees of Defendant; who worked for Defendant in California; who worked the same average workday and workweek as Plaintiff; and who were also subjected to the same policies and practices as Plaintiff, which are also the basis of their claims and alleged legal theories. The Class Representative, therefore, has identical claims to those of the Class. (Id. at 20:17-28.)

As

to adequacy, Plaintiff represents that he is aware of the duties and risks of serving as class representative and has participated in the litigation. (Declaration of Adrian Zamorano, ¶¶14-19.)

d.

Adequacy

of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given

the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

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Is the notice proper?

a.

Content

of class notice. The proposed notice is attached to the Settlement Agreement. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; attorney fees and costs; enhancement awards; the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Notice will be issued in English and Spanish. (¶1.11)

b.

Method

of class notice. No later than thirty (30) calendar days after the Court grants Preliminary Approval of the Settlement, Defendant will simultaneously deliver the Class Data to the Administrator in the form of a Microsoft Excel spreadsheet. (¶6.1) No later than fourteen (14) calendar days after the Court grants Preliminary

Approval of the Settlement, the Administrator will send all Class Members identified in the Class Data, via first-class United States Postal Service (“USPS”) mail, the Class Notice in English and Spanish. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶6.3)

No later than three (3) business days after its receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by USPS. If USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send the Class Notice to Class Members whose Class Notice is returned by USPS a second time. (¶6.4)

The deadlines for Class Members’ Objections, Challenges to the Calculation of Workweeks and/or PAGA Pay Periods, and Requests for Exclusion will be extended an additional fourteen (14) calendar days beyond the sixty (60) calendar days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. (¶6.4.1) Notice of Final Judgment will be posted on the Settlement Administrator’s website. (¶6.11)

c.

Cost

of class notice. As indicated above, settlement administration costs are estimated to equal approximately \$6,000. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

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Attorney fees and costs

CRC rule 3.769(b) states: “Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.”

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$66,666.67 (33 1/3%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs (capped at \$20,000) sought by detailing how they were incurred.

Incentive Award to Class Representative

Class Counsel will seek a Service Payment of \$7,500 to the named Plaintiff. In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they "should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class." (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.' Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of

financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id. at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement award at the time of final approval.